

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST  
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under  
Section 331 of the Code of Criminal  
Procedure Act No.15 of 1979.

**Court of Appeal Case No.  
CA/HCC/0055/2024  
High Court of Ampara  
Case No. HC-AMP/1970/2018**

Wijesundara Bandara Mudiyanse  
Medagedera Sarath Bandara

**ACCUSED-APPELLANT**

**Vs.**

The Hon. Attorney General  
Attorney General's Department  
Colombo-12

**COMPLAINANT-RESPONDENT**

**BEFORE** : **P. Kumararatnam, J.  
R. P. Hettiarachchi, J.**

**COUNSEL** : **Janith Perera for the Appellant.  
Azard Navavi, PC, ASG for the Respondent.**

**ARGUED ON** : **23/07/2026**

**DECIDED ON** : **24/09/2026**

## **JUDGMENT**

### **P. Kumararatnam, J.**

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General in the High Court of Ampara for committing one count of incestuous rape on his sister's daughter namely Dissanayake Mudiyanseelage Hashini Kawshalya Tennakoon on 28.05.2017, an offence punishable under Section 364(3) of the Penal Code as amended.

After the trial, the Appellant was convicted as charged and was sentenced to 15 years rigorous imprisonment and a fine of Rs.50,000/-, in default of which 01-year simple imprisonment had been imposed.

Being aggrieved by the aforesaid conviction and the sentence, the Appellant preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant has provided his consent for this matter to be argued in his absence. During the argument he was connected via the Zoom platform from prison.

The Counsel for the Appellant advanced the following grounds of appeal:

1. The judgment of the High Court Judge is factually and legally incorrect.
2. The Learned Trial Judge failed to consider the discrepancies in the evidence of prosecution witnesses.
3. The Learned Trial Judge erred by holding that the evidence of PW1 and PW2 are trustworthy to be acted upon.
4. The Learned Trial Judge has failed to analyse, scrutinize and to give reasons in rejecting the defence evidence.

As these the grounds of appeal are interrelated, these grounds will be considered jointly in this appeal.

In this case the Appellant was indicted on 01 count for having committed an offence of incestuous rape on 28.05.2017 punishable under Section 364(3) of the Penal Code as amended that is, committing incestuous rape on the victim who was under 14 years of age when she stood in a relationship towards him as enumerated in Section 364(A) (1) of the Penal Code as amended.

Section 364(3) of the Penal Code states:

“Whoever commits rape on a woman under sixteen years of age and the woman stands towards the man in any of the degrees of relationships enumerated in Section 364A shall on conviction be punished with rigorous imprisonment, for a term not less than fifteen years and not exceeding twenty years and with fine.

Section 364A (1) of Penal Code states:

“Whoever has sexual intercourse with another, who stands towards him in any of the following enumerated degrees of relationship, that is to say —

- a) either party is directly descended from the other or is the adoptive parent, adoptive grandparent, adopted child or adopted grandchild of the other; or
- b) the female, is the sister of the male, either by the full or the half-blood or by adoption, or is the daughter of his brother or of his sister, by the full or the half blood or by adoption, or is a descendant from either of them, or is the daughter of his wife by another father, or is his son's or grandson's or father's or grandfather's widow; or

- c) the male, is the brother of the female either by the full or the half blood or by adoption, or is the son of her brother or sister by the full or the half blood or by adoption or is a descendant from either of them, or is the son of her husband by another mother, or is her deceased daughter's or granddaughter's or mother's or grandmother's husband, commits the offence of 'incest'."

In this case the Appellant was not charged under 364A of the Penal Code as amended. He was charged under Section 364(3) of the Penal Code as amended. The sole reason for mentioning 364A of the Penal Code as amended in the body of the charge framed under 364(3) is to establish the prohibited sexual intercourse the Appellant had with his sister's daughter.

According to PW1, the Appellant is her maternal uncle who was working in the Sri Lankan Army during the relevant period. He has separated from his wife and started to build a house close to the victim's house. Hence, he used to stay at the victim's house in the night. The victim's father was employed in Colombo and used to visit them once a month. On the day of the incident the Appellant had consumed liquor with another person and had gone to sleep around 10.00pm. The victim, her mother and siblings had slept inside the house while the Appellant slept in the hall. The victim had gone to sleep after watching a teledrama. At about 10.30pm, the victim had heard the Appellant calling her mother to get a glass of water. As her mother, PW2 was fast asleep, she had come out and gone to the kitchen to fetch a glass of water. At that time, the Appellant had grabbed her from behind, closed her mouth, removed her undergarment and committed rape on her and also ejaculated. Although the victim had resisted, she could not escape from the Appellant. While the Appellant was on her body, a table was knocked down by the victim. Hearing the noise, when her mother came out, she had seen the Appellant on the top of the victim's body. As PW2 raised cries, the Appellant had taken his clothes and left the house in his three-wheeler that night. Thereafter, the incident was reported to her father in the morning who

had informed the incident to the Child Protection Authority on 04.06.2017 and they had taken PW1 to Colombo. After lodging a complaint, the victim was subjected to a medical examination at the Colombo Judicial Medical Officer.

PW2, the mother of the victim too narrated the same as the victim.

PW06, the JMO who examined the victim and issued the Medico Legal Report has stated that when he examined the victim, she was 14 years old. She had given a short history as stated in her statement to police. The medical test revealed that 4 and 8 O'clock positioned tears were found on her vagina. According to the JMO, the hymenal tears were fresh and the victim had still complained of pain in her vagina.

The Appellant gave evidence from the witness box and denied the charge. He had taken up the position that a false complaint was lodged due to a land problem that had existed between their two families.

Further, he had called four witnesses on his behalf and led bad character evidence of the victim.

In this case, the defence could not mark any contradictions or highlighted any omissions in the evidence given by PW1 and PW2. Further, PW2 had seen the Appellant was on victim's body when she came out from the room where she was sleeping.

In this case, the evidence of PW1 has been corroborated with the evidence of PW2, who is the mother of the victim and the sister of the Appellant. Further, the medical evidence also corroborates the version of the victim. PW1 and PW2 had never mentioned about any dispute with the Appellant. The Appellant was staying in the victim's house on that day.

It is very important to note that the Appellant had never been questioned of the existence of a land dispute with the victim's family. He only stated this in his evidence given under oaths.

The Court of Appeal in **Bandara v. The State** C.A. 27/99 held that:

*“...when there is ample opportunity to contradict the evidence of a witness but is not impugned or assailed in cross-examination that is a special fact and feature in the case, it is a matter falling within the definition of the word “proof” in section 3 of the Evidence Ordinance and a trial judge or court must necessarily take the fact in to consideration in adjudicating the issue before it.”*

In **Ukkuwa v. The Attorney General** [2002] 3 SLR 279, is a case where Justice S. Tilakawardene held that matters of fact that could have been challenged and clarified at the Trial Court are precluded from being challenged at the Appellate Court in the following manner at page 282;

*“... court is mindful of the fact that having had the opportunity to cross-examine the witness before the original court and having failed or neglected to avail himself of the opportunity of such examination on these matters which could have been clarified, had such objections or cross-examination being raised in the original court, the counsel is precluded from challenging so the veracity of such matters of fact before this court.”*

In **Gunasiri and Two Others v. Republic of Sri Lanka** C.A. 116/13, the Court of Appeal held that:

*“...it is a rule of essential justice that whenever the opponent has declined to avail himself of the opportunity to put his case in cross-*

*examination it must follow that the evidence tendered on that issue ought to be accepted.”*

Considering the above-mentioned judgments, the non-questioning of any material facts by the Appellant had not caused any challenge to the prosecution witnesses.

Further, it is highly unlikely that parents would use their own daughter's chastity to bring forward a false claim of rape against a close relation, which could potentially harm her dignity.

In **Deo Nayaran Yadav and Bhulla Yadav V The State of Bihar (Criminal Appeal (DB) No.871 of 2017)** the court held that:

*“No parent of any girl in our society can damage reputation of his/her daughter regarding her chastity. It has been seen in our society that even in case of commission of sexual assault, victims and their parents are hesitant/reluctant to go public to file a criminal case, because after such incident, life of the girl is almost spoiled.”*

In **State of Punjab v. Gurmit Singh** [1996] 2 SCC 384 it was held that:

*“The courts must, while evaluating evidence, remain alive to the fact that in a case of rape, no self-respecting woman would come forward in a court just to make a humiliating statement against her honour....”*

In the case of **Bharwada Bhoginbhai Hirjibhai v. State of Gujarat** (1983) 3 SCC 217 it was held:

*“Rarely will a girl or a woman in India make such false allegations of sexual assault, whether she belongs to the urban or rural society, or, sophisticated, or, not-so sophisticated, or, unsophisticated society. Only very rarely can one conceivably come across an exception or two and that too possibly from amongst the urban elites.”*

As observed above, the defence has failed to successfully challenge the evidence brought forward by the prosecution. The evidence given by the victim as well as PW02 is quite similar, and the medical evidence assessed by PW06 JMO further corroborates the incident in question. As such, it is quite evident that their evidence can be considered to be cogent and accurate regarding the incident. No vital contradictions or omissions have been marked.

In the case of **State of Andra Pradesh v. Gangula Satya Vani Murthy** AIR 1997 SC 1588, it was held that:

*“...the courts are expected to show great responsibility while trying an accused on charges of rape. They must deal with such cases with utmost sensitivity.”*

As such, considering the sensitivity of the situation and the tender age of the victim, it is the view of this court that the evidence given is consistent and credible.

Further, the Learned High Court Judge had very correctly considered the defence evidence before he convicted the Appellant as charged.

Hence, I conclude that the grounds of appeal raised by the Appellant do not have any merit.

When analysing the entirety of the evidence presented, I am of the view that the prosecution had proved the case against the Appellant beyond reasonable doubt. Hence, I affirm the conviction and sentence imposed on him by the Learned High Court Judge of Ampara. Therefore, the Appeal is dismissed.

Considering all the circumstances, I order the sentence imposed on the Appellant to be operative from the date of conviction namely, 15/09/2023, given the fact that the Appellant has been in incarceration since the conviction.

The Registrar is directed to send this judgment to the High Court of Ampara along with the original case record.

**JUDGE OF THE COURT OF APPEAL**

**R. P. Hettiarachchi, J.**

**I agree.**

**JUDGE OF THE COURT OF APPEAL**